

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

*In the matter of an application for mandate in
the nature of Writs of Certiorari under and in
terms of Article 140 of the Constitution of the
Democratic Socialist Republic of Sri Lanka*

CA (Writ) Application No.201/2022

Chandrasena Ranasinghe alias
Chandrasena Ranasinghege
Walawa, Medagama,
Ambalanthota

PETITIONER

Vs.

1. A. H. M. L. Aberathne,
Commissioner General of Agrarian
Services
2. Eranga Atapattu
Assistant Commissioner of Agrarian
Development,
Legal Division,

Both at, No 42, Sir, Marcus
Fernando
Mawatha
(PO Box 537)
Colombo 07
3. Hon. Attorney General
Attorney General's Department
Colombo 12
4. Kumuduni Pandithasekara
No. 63/9A,
Sri Rathnapala Mawatha,
Matara.

RESPONDENTS

Before: Mayadunne Corea, J.
Mahen Gopallawa, J.

Counsel: P. Alagiyawanna with Ms. Sauri Senanayake instructed by Ms. Bushra Hashim for the Petitioner.
Ms. Rifana Mukthar, State Counsel for the 1st to 3rd Respondents.
W. N. S. S. Perera instructed by R. Punchihewa for the 4th Respondent

Argued on: 26.01.2026

Written Submissions: Petitioner on 25.02.2026
4th Respondent on 25.02.2026

Decided on: 26.06.2026

Mahen Gopallawa, J.

Introduction

The Petitioner is the tenant cultivator of the paddy land called "mullekumbura" in Ambalantota owned by the 4th Respondent. In the instant application, he has impugned the order made by the 2nd Respondent dated 29.03.2022 (P11) in terms of section 2(4) of the Agrarian Development Act No. 46 of 2000 (as amended) determining that the Petitioner has failed to act in terms of sections 2(3)(a) and 2(3)(b) of the Act, when the said paddy land was offered for sale. The sole substantive relief sought by Petitioner is a writ of *Certiorari* quashing the said order (P11).

The 1st and 2nd Respondents as well as the 4th Respondent have filed statements of objections objecting to the grant of the reliefs prayed for by the Petitioner. Accordingly, the application was taken up for hearing and the parties were also afforded an opportunity of filing post-argument written submissions.

Statutory Framework

In the first instance, it would be helpful to set out the provisions in the Agrarian Development Act ("the Act") that are applicable when an owner of a paddy land in respect of which there is a tenant cultivator intends to sell the said paddy land. The said provisions are contained in section 2 of the Act and provide as follows;

2. (1) The owner of an extent of paddy land in respect of which there is a tenant cultivator, who intends to sell such extent, shall in the first instance make an offer to sell such extent to the tenant cultivator. Such offer shall be made to the tenant Cultivator by communication in writing, and sent by registered post, stating the price

at which he offers to sell such extent. The owner shall cause a copy of such communication to be sent by registered post to the Agrarian Development Council within whose area of authority such paddy land is situated.

(2) If upon receipt of the communication under subsection (1), the tenant cultivator is willing to purchase such extent of paddy land at the price offered by the owner, he shall indicate his willingness to the owner and the Agrarian Development Council by communication in writing sent by registered post and the Council shall fix a period within which the transfer shall be completed.

(3) (a) Where the tenant cultivator is willing to purchase such extent of paddy land but states that the price offered by the owner is excessive, the Agrarian Development Council may in consultation with the owner determine a price which in its opinion is reasonable, having regard to the market value of paddy lands in the area and proceed to fix a period within which the transfer shall be completed.

(b) On the price being fixed, the tenant cultivator shall thereupon purchase such extent of paddy land either at the price offered by the owner or as determined by the Agrarian Development Council, as the case may be, and shall complete the transfer within the period fixed.

(4) Where the Commissioner-General is satisfied, after inquiry, that a tenant cultivator has failed and neglected to act in accordance with the provisions of subsection (2) or (3), the Commissioner-General shall take action to evict such tenant cultivator in accordance with the provisions of section 8.

(5) Any transfer by the owner of any extent of paddy land in contravention of the provisions of this section shall after inquiry be declared null and void by the Commissioner-General and shall render the person in occupation of such extent under such transfer, liable to be evicted in accordance with the provisions of section 8.

(6) Where a transfer of any extent of paddy land is declared null and void by the Commissioner-General a copy of such declaration shall be transmitted under section 5 to the Registrar of Lands of the District in which such extent of paddy land is situated.

In addition, the Petitioner has pleaded that there is an imminent threat of eviction consequent to the impugned order (P11). The procedure for eviction of a tenant cultivator is set out in section 8 of the Act and sub-sections (1) and (2) thereof read as follows;

8.(1) Where any person who has been ordered under this Act, by the Commissioner-General to vacate any extent of agricultural land, fails to comply with such order, the Commissioner-General or any other person authorised in that behalf by the Commissioner-General may present to the Magistrate's Court within whose local jurisdiction such extent wholly or mainly lies, a written report

(a) setting out the nature of such order and the person to whom it was issued, describing the extent of land to which such order relates;

(b) stating that the person who has been ordered to vacate has failed to so vacate such extent of land; and

(c) praying for an order to evict such person and all other persons in occupation of such extent of land from such extent, and stating the name of the person to whom delivery of possession of such extent should be made.

(2) Where a written report is presented to a Magistrate's Court under subsection (1), such court shall direct the Fiscal or peace officer to forthwith evict the person specified in such report and all other persons in occupation of the extent of agricultural land specified in the order and to deliver possession of such extent to the person mentioned in such report as the person to whom delivery of possession of such extent should be made.

The aforementioned statutory provisions will be examined in greater detail in relation to the grounds of review presented by the Petitioner.

Factual Background

The salient facts of this case, as contained in the pleadings and the documents annexed thereto, could be summarized as follows.

The 4th Respondent had declared her intention to sell the paddy land in issue and had made an offer to the Petitioner to sell same at a price of Rs. 600,000/= per acre by notice dated 29.01.2009 (P1) in terms of section 2(1) of the Agrarian Development Act. The said decision had also been communicated by the 4th Respondent to the Agrarian Development Officer Ambalantota on the same date (29.01.2009).

The Petitioner by letter dated 05.02.2009 (P2) had declared his willingness to purchase the paddy land offered for sale by the 4th Respondent. However, he had stated that he was not willing to purchase the paddy land at the price quoted by the 4th Respondent since it was excessive but that he was willing to purchase it at a value determined by the Ambalanthota Agrarian Development Council.

As evidenced by the notice dated 21.04.2009 (P3), steps had been taken by the Administrative Coordinating Secretary of the said Agrarian Development Council to summon the parties for an inquiry in terms of section 2 (3) of the Act. Pursuant to such inquiry, the parties had been informed in writing by the Agrarian Development Council on 01.06.2009 (P4) that the paddy land in extent 02 Acres and 02 Roods had been valued at Rs. 550,000/= per acre amounting to Rs. 1,375,000/= and the Petitioner was also informed to complete the transfer on or before 15.07.2009.

The Petitioner, by letter dated 03.07.2009 addressed to the 4th Respondent and copied to the Agrarian Development Officer Ambalantota and the Council (P5), had indicated his agreement to purchase the said paddy land for the said price of Rs.1,375,000/= before 15.07.2009.

Thereafter, the 4th Respondent, by letter dated 07.07.2009 (P6), had informed the Petitioner to pay Rs. 1,437,218/75 on the basis that the extent of the said land was 02 Acres-02 Roods and 18.10 Perches and also stated that such amount was in accordance with the valuation of

Rs. 550,000/= per acre made by the Agrarian Development Council. The Petitioner had replied the 4th Respondent by letter dated 13.07.2009 (P7) that, as per the entries in the Paddy Lands Register, he was the tenant cultivator only in respect of an extent of 02 Acres and 02 Roods and that he was only willing to purchase such extent and that he did not require an additional extent of 18.10 Perches referred to in the letter (P6).

The Petitioner has pleaded that that there was no response to the letter (P7) prior to 15.07.2009, and, as such, he had not been able to purchase the paddy land before the said date, which was set by the Agrarian Development Council to complete the transfer of the paddy land.

It transpires from a letter dated 24.07.2009 addressed by the Petitioner to the 4th Respondent, which has been marked as P10 in CA (Writ) Application No. 504/11,¹ that he had agreed to purchase the paddy land at a price of Rs.1,375,000/= in order to obtain time to complain about injustices committed by the Agrarian Development Officer in the valuation of the paddy land to higher authorities. It is further stated in the said letter that he would obtain funds even amidst difficulties to purchase the paddy land at a price of Rs. 350,000/= per acre. In the petition, the Petitioner has pleaded that he had become aware that entries of the decision of the Agricultural Development Council relating to the valuation had been altered.

The Assistant Commissioner of Agrarian Development, Hambantota, consequent to an inquiry, had recommended to the 1st Respondent that a re-valuation should be obtained in respect of the paddy land in issue, as reflected in the letters dated 21.04.2010 (P8) and 15.03.2011 (P8a).

Such decision to recommend the re-valuation of the paddy land was challenged by the 4th Respondent before this Court in the aforementioned CA (Writ) Application No. 504/2011 (P9), and, by the judgment dated 07.09.2015,² the Court observed that the Agrarian Development Act did not contain provisions to have a second inquiry to re-value a paddy field once a decision had been made under section 2 of the said Act and that the decision of the Assistant Commissioner of had been made without authority. Accordingly, the Court proceeded to issue a writ of *Certiorari* quashing the said decision (P8),³ but refused to issue a writ of *Mandamus* observing that before taking steps under section 8 of the Act, an inquiry had to be held in terms of section 2(4) of the Act. The judgment further records the fact that 4th respondent and the petitioner in the said case respectively, who are the Petitioner and the 4th Respondent in the instant case, agreed to make an application to have an inquiry under section 2(4) of the Act and participate at such an inquiry. It is further recorded that the Petitioner had reserved his rights to take up issues relating to the document (1R1 in the said case) prepared by the Director (Investigations) of the Ministry of Agricultural Development and Agrarian Services.

The instant application relates to the inquiry conducted in terms of section 2(4) of the Act pursuant the such judgment in the aforementioned writ application and the Petitioner has impugned the order dated 29.03.2022 (P11) made by the 2nd Respondent, who conducted the inquiry. The proceedings of the inquiry (P10) and the order of the inquiry officer (P11) have been tendered to this Court with the petition.

¹ The brief in the said case has been annexed to the petition in the instant application marked P9

² vide pp 27-30 of the brief marked P9

³ The said letter was marked P17 in CA (Writ) Application No. 504/2011

The inquiry proceedings and the order of the inquiry officer (2nd Respondent) (P11), *inter alia*, disclose that the inquiry had been conducted on a complaint made by the 4th Respondent and that four witnesses had testified at the said inquiry. The 4th Respondent's her husband (Hewa Katuwandeniya Ajith Pushpa Kumara) had given evidence on her behalf, whilst the Petitioner had testified on his behalf. In addition, the inquiry officer had summoned and recorded the evidence of the Agrarian Development Officer, Ambalantota (Rupa Wijesundera Dissanayake), who had served at the material time, and the Director (Investigations) of the Ministry of Agricultural Development and Agrarian Services (A. A. Wickremasinghe) and also permitted the parties to cross-examine them. It also transpires that the parties had been permitted legal representation at the inquiry.

In his order (P11), the 2nd Respondent has made the following findings

ඉහත කරුණු අනුව ගොවිජන සංවර්ධන පනතේ 2(1) වගන්තියට අනුව ඉඩම් හිමියා වන පැමිණිලිකරු විසින් අද ගොවියා වෙත ලිඛිත දැනුම් දීමක් කර ඇත. අද ගොවියා විසින් ගොවිජන සේවා කමිටුව විසින් තීරණය කරනු ලබන මිලකට ගැනීමට එකඟ වී ඇති අතර ඒ අනුව තක්සේරු කර ඇත. ඒ අනුව පනතේ 2(3)(අ) වගන්තියට අනුව දෙපාර්ශවය කටයුතු කර ඇති බව තහවුරු වේ. එසේම 2(3)(ආ) වගන්තියට අනුව ගත යුතු නිෂ්චිත දින නියම කර තිබුණද අද ගොවියා වන චන්ද්‍රසේන රණසිංහ යන අය විසින් නිශ්චිත දිනදී මිලදී ගැනීමක් කර නොමැති බව තහවුරු වේ.

එසේම විෂයගත ඉඩම සඳහා පිඹුරක් සකස් කළ බවට තහවුරු නොවන අතර කෘෂිකාර්මික ඉඩම් ලේඛනයේ අදහන් අක්. 2 රුඩ් 2 ක ප්‍රමාණය තක්සේරු කරනු ලබන අවස්ථාවේ හෝ පසුව ගොවිජන සංවර්ධන කාරක සභාව වෙත පැමිණිලි පාර්ශවය හෝ වග උත්තරකාර පාර්ශවය විසින් විරෝධතාවක් ඉදිරිපත් කර නොමැත. එබැවින් විෂයගත ඉඩමේ ප්‍රමාණය අක්.2 රුඩ් 2 ක් බව තහවුරු වේ.

එසේම ගොවිජන සංවර්ධන කොමසාරිස් ජනරාල්වරයා විසින් ගොවිජන සේවා කමිටුවේ තක්සේරුව පිළිබඳ ගොවිජන සංවර්ධන නිලධාරී විසින් වංචාවක් සිදුකර ඇද්ද යන්න පිළිබඳව ගොවිජන සංවර්ධන නිලධාරීට එරෙහිව මූලික විමර්ශනයක් කර විධිමත් විනය පරීක්ෂනයක් පවත්වා එම කමිටු වාර්තාව වෙනස් කරන ලදැයි සඳහන් චෝදනාවෙන් නිදොස් කොට නිදහස් කර ඇති බැවින් ගොවිජන සංවර්ධන නිලධාරී විසින් විෂයගත ඉඩම තක්සේරු කිරීමේදී වංචා සහගත ලෙස කටයුතු කර නොමැති බව තහවුරු වේ.

ඉහත කරුණු සියල්ල සැලකීමේදී අද ගොවියා විසින් ගොවිජන සංවර්ධන පනතේ 2(3)(අ)(ආ) උප වගන්තියේ විධිවිධාන වලට අනුකූලව කටයුතු කිරීම පැහැර ඇති බවට පනතේ 2(4) වගන්තියට අනුව තීරණය කරමි.

It also transpires from the inquiry proceedings and order that disciplinary proceedings had been instituted against the aforementioned Agrarian Development Officer regarding her conduct in the valuation of the paddy land pursuant to the finds made at the preliminary investigation conducted by the Director (Investigations) of the Ministry of Agricultural Development and Agrarian Services and that she had been exonerated at the formal inquiry.

Grounds of Review and Analysis

In paragraph 20 of the petition, the Petitioner has sought to impugn the order (P11) on the following grounds; that,

- (a) the order of the 2nd Respondent is contrary to law and materials placed before him;
- (b) the 2nd Respondent has acted against the materials placed before him and thus, the said order is tainted with illegality;
- (c) *Ex facie*, there are errors on the face of the record;
- (d) the 2nd Respondent has acted in excess of jurisdiction when he made the said order; and
- (e) the 2nd Respondent has acted considering irrelevant considerations when making the said order.

The principal submission made by the learned Counsel for the Petitioner, which has been reiterated in the Petitioner's written submissions, was that the 2nd Respondent had failed to consider the fact that the Petitioner had only been prevented from purchasing the subject paddy land due to the illegal conduct of the 4th Respondent.⁴ He drew the attention of Court to the fact that, as borne out by the letters marked (P2), (P5) and (P7) the Petitioner was always willing to purchase the paddy land in extent 02 Acres and 02 Roods at the valuation determined by the Agrarian Development Council. The learned Counsel further adverted to the fact that the 4th Respondent, by letter dated 07.07.2009 (P6) had insisted that the Petitioner pay an increased purchase price of Rs. 1,437, 218/75 for an additional extent of 02 Acres 02 Roods and 18.10 Perches, when the extent of the paddy land was 02 Acres and 02 Roods, as per the entries in the Agricultural Lands Register and as accepted by the inquiry officer. He also submitted that the 4th Respondent did not provide any mode to deposit the purchase price or extend the period to complete the sale.

The learned Counsel for the Petitioner further submitted that the 4th Respondent has sought to benefit by his illegal conduct of delaying the process of sale by increasing the extent of land and the purchase price, as aforesaid, and such conduct was contrary to the principle "*nullus commodum capere potest de injuria sua propria*" to the effect that "no man can take advantage of his own wrongdoing."⁵ He cited the decision of the Supreme Court in ***Piliyandala Tharuna Baudhha Samithiya (Young Buddhist Association) v. Satharasinghe Achchige Don Chaminda***,⁶ wherein the Court has set out the core purposes of the rule in the following terms (per Samayawardhena J);

*This legal doctrine serves several core purposes, foremost among them being the preservation of the integrity of the judicial process. Courts must not be seen to endorse or reward unlawful conduct, for permitting a wrongdoer to benefit from his own wrongdoing would inevitably undermine public confidence in the administration of justice. The doctrine also has a deterrent purpose, as permitting legal advantage to flow from wrongdoing would encourage non-compliance with the law. Finally, it promotes fairness between parties, ensuring that a person is not placed in a better position by reason of improper or unlawful conduct than he would have occupied had he acted lawfully.*⁷

⁴ vide paragraph 3 of the Petitioner's written submissions

⁵ vide paragraph 4 of the Petitioner's written submissions

⁶ SC Appeal No. 96/2025, SC Minutes 10.02.2026

⁷ *ibid*, pp 10-11

In response, the learned Counsel for the 4th Respondent pointed out that, although the Petitioner sought to attribute his failure to complete the purchase entirely to the demands made in the letter (P6), the Petitioner's own letter dated 24.07.2009 addressed to the 4th Respondent (P10 in CA Writ 504/11), clearly indicated that the Petitioner had agreed to purchase the paddy land at a price of Rs.1,375,000/= in order to obtain time to complain about injustices in the valuation of the paddy land to higher authorities. For purposes of clarity, the relevant extracts from the original text are reproduced below;

මම 2009. 07. 03 වන දින ලියුමෙන් කුඹුර අක්කර 02යි රූඩ් 02යි පර්චස් නැත එම කුඹුර රු 1, 375, 000. 00 කට මිලදී ගැනීමට කැමැත්ත පලකළේ මාවෙන එවා තිබූ ගොවිජන සේවා නිලධාරීන්ගේ අසාධාරණය ගැන ඉහල නිලධාරීන්ට පැමිණිලි කර මට යුක්තිය ඉටුකරගැනීමට කල් ලබාගැනීම සඳහාය.

මෙම කුඹුරු ඉඩම අක්කරයක් රු. 350000.00 කට බැගින් මිලදී ගැනීමට ඉතා අපහසුවෙන් හෝ මුදල සොයා ගන්නා බවද එසේ ගැනීමට කැමති බවද කාරුණිකව දන්වමි.

The learned Counsel also referred to the fact that in the said letter, the Petitioner had expressed his intention to purchase the paddy land at a price of Rs. 350,000/= per acre, which was well below the valuation given by the Agrarian Development Council of Rs. 550,000/= per acre. Thus, the learned Counsel submitted that there was no *bona fide* intention on the part of the Petitioner to purchase the subject paddy land. He also submitted that such letter had also tendered in evidence at the inquiry and had been considered by the inquiry officer in his order.

It was further submitted that the Petitioner had failed to specifically refer to the aforementioned letter in the petition or attach same, considering the significance of its contents, and had merely filed it without any identification with the case record of CA (Writ) Application No. 504/2011. He contended that such conduct on the part of the Petitioner amounted to willful misrepresentation and suppression of material facts. I intend to revert to such legal objection at a later point in this judgment.

In her written submissions, the 4th Respondent had also adverted to the evidence given by the Petitioner at the inquiry, wherein he had attempted to establish and maintain the position that the valuation made by the Agricultural Development Council of Rs. 550,000/= per acre was erroneous and that the actual valuation made by the Council was Rs. 350,000/=. However, such position had not been accepted, as the inquiry officer had concluded that neither had the Agrarian Development Council exceeded its mandate nor had the Agrarian Development Officer been found guilty of any wrongdoing in respect of the valuation conducted of the subject paddy land.

The learned State Counsel on behalf of the 1st to 3rd Respondents submitted that the 1st and 2nd Respondents have acted within the powers conferred upon them under section 2 of the Agrarian Development Act. She further submitted that the inquiry had been conducted by the 2nd Respondent with due compliance with the principles of natural justice and the determination made in the order (P11) that the Petitioner has failed to act in terms of sections 2(3)(a) and 2(3)(b) of the Act is justified in the light of the evidence led at the inquiry. She further referred to the decision in **Vidana Gamachchige Misy v. W.H.D. Shamali, Assistant**

Commissioner of Agrarian Development and others,⁸ wherein this Court held that, upon the sale price being fixed by the Agrarian Development Council, the petitioner, who was the tenant cultivator, should have purchased the paddy lands in issue.

The learned State Counsel further clarified that there was no express provision made in section 2(3) of the Agrarian Development Act for the extension for the period fixed under section 2(3)(a) to complete the transfer of a paddy land, and, that, in any event, no such request had been made by the Petitioner in the instant case. She further clarified there was also no provision made in the Act for the acceptance of a deposit in effecting such transfer of a paddy land under section 2 of the Act. Upon consideration of the provisions of the Act, I am inclined to accept such submissions made by learned State Counsel.

It was also the position of the said 1st and 2nd Respondents that they had maintained that the extent of the paddy land was 02 Acres and 02 Roods, as per the records maintained at the Ambalantota Agrarian Centre, and, that they were not privy to correspondence exchanged between the Petitioner and the 4th Respondent regarding changes to the extent of the land.⁹

Since it is not in dispute that the Petitioner had failed to purchase the subject paddy land by the date specified by the Agrarian Development Council (15.07.2009), whatever the reasons for such failure may be, it was incumbent upon the 1st and 2nd Respondents to conduct an inquiry in terms of section 2(4) of the Agrarian Development Act. In fact, as clearly reflected in the judgment, the parties themselves had agreed to initiate and participate at such an inquiry before this Court in CA (Writ) Application No. 504/2011 (P9). It is also observed that in terms of section 38(5) of the Act, an Assistant Commissioner is empowered to exercise all or any of the powers of the Commissioner General under the Act within the area to which he/she is appointed. Thus, ground urged by the Petitioner that the 2nd Respondent has acted in excess of jurisdiction is devoid of any merit and is rejected.

Regarding the Petitioner's principal submission that he had been prevented from purchasing the subject paddy land by the illegal conduct of the 4th Respondent, I am of the view that the position taken up by him that he had indicated his willingness to purchase the subject paddy land at the price fixed by the Agricultural Development Council in the letters marked (P2), (P5) and (P7) cannot be considered in isolation or as being conclusive and must be considered along with other attendant circumstances in the instant case.

In the first instance, it is observed that, as submitted by both learned Counsel for the Respondents, the contents of the Petitioner's letter dated 24.07.2009 addressed to the 4th Respondent (P10 in CA Writ 504/11) appear to indicate that there was no genuine or *bona fide* intention on the part of the Petitioner to purchase the paddy land at the price of Rs.1,375,000/= fixed by the Agrarian Development Council. Such contention is further buttressed by the fact that the Petitioner had indicated his willingness to purchase the paddy land at a price of Rs. 350,000/= per acre, which is different and lesser than the purchase price fixed by the Council. The aforementioned letter had been tendered in evidence at the inquiry before the 2nd Respondent and has been referred to in his order (P11) as well. In this regard, I

⁸ CA (Writ) Application No. 237/2017, decided on 29.08.2024

⁹ vide paragraph 13 of the statement of objections of the 1st and 2nd Respondents

am also conscious of the fact that the Petitioner has studiously avoided any reference to the said letter in the petition filed in the instant application.

Secondly, it is observed that, if the Petitioner was aggrieved by the changes to the extent of the paddy land and the purchase price sought to be imposed by the 4th Respondent in the letter (P6), he could reasonably be expected to have brought such matter to the attention of the Agrarian Development Council or the Agrarian Development Officer considering the fact that the deadline to complete the purchase was fast approaching. There is no evidence before this Court to indicate that he had done so. In fact, the position of the 1st and 2nd Respondents is that they were unaware of the exchange of correspondence between the Petitioner and 4th Respondents relating to changes to the extent of the paddy land and the purchase price.

Thirdly, it is observed that the rights conferred upon a tenant cultivator under section 2 of the Agrarian Development Act¹⁰ has the essential character of a pre-emption right where a mandatory offer of sale has to be made by the owner and the tenant cultivator has the right of first refusal. Correspondingly, it imposes a restriction upon the right of alienation of the owner of the paddy land. Thus, considering the balance of interests of the parties, it could be reasonably assumed that the onus of completing the purchase of a paddy land offered for sale by an owner in terms of section 2 of the Act is upon the tenant cultivator. Correspondingly, the consequences arising from the failure to complete the purchase, including eviction, too would have to borne by the tenant cultivator.

It is re-iterated that the purpose and function of an inquiry held under section 2(4) of the Act is to ascertain whether there has been any failure or negligence on the part of the tenant cultivator in exercising such rights. Considering the aforementioned conduct of the Petitioner of which evidence was available to the inquiry officer, I am of the view that the findings made by him in the order (P11) that the Petitioner has failed and neglected to act (පැහැර හැර) in accordance with the provisions of sections 2(3)(a) and (b) of the Act cannot be considered as being *ultra vires* the Agrarian Development Act or contrary to the evidence presented at the inquiry or unreasonable, as alleged by the Petitioner.

It is also observed that the inquiry officer has examined the issue as to whether there was any wrongdoing on the part of the Agrarian Development Officer regarding the valuation of the paddy land, as alleged by the Petitioner, in detail. This is evident by the fact that, although the Petitioner had failed to call any witnesses on the issue, the inquiry officer on his motion had summoned as witnesses the concerned Agrarian Development Officer and the Director (Investigations) of the Ministry of Agricultural Development and Agrarian Services who had conducted the preliminary investigation against such officer and also permitted them to be cross-examined by the parties. Upon the evidence available, the inquiry officer had concluded that the Agrarian Development Officer had been exonerated at the formal disciplinary inquiry held against her and that no fraudulent conduct on her part in relation to the valuation of the paddy land had been established.

¹⁰ The said section 2 is comparable to section 12A of the repealed Agrarian Services Act No. 58 of 1979 (as amended)

As detailed in the factual narrative above and reflected in the inquiry proceedings (P10), I am further satisfied that principles of natural justice, including the right of legal representation, the right to call witnesses and cross-examine all witnesses, have been duly observed in the conduct of the inquiry. Thus, apart from the grounds referred to above, I am unable to discover any error on the face of the record on account of procedural impropriety in the impugned order (P11).

Therefore, I am of the view that the Petitioner has failed to establish the existence of any of the aforementioned grounds of review cited by him, and, as such, I see no legal basis to interfere with the findings made in the order (P11). In arriving at such conclusion, I am acutely conscious of the fact that this Court is sitting in judicial review and not in appeal. It is trite law that, in an application for judicial review, the scope of inquiry that a Court is mandated to undertake relates to an examination of the legality of the impugned order, as opposed to its merits. Such distinction between judicial review and appeal on merits has been articulated in the celebrated text **Wade & Forsyth's Administrative Law**¹¹ in the following terms;

*The system of judicial review is radically different from the system of appeals. When hearing an appeal, the court is concerned with the merits of a decision: is it correct? When subjecting some administrative act or order to judicial review, the court is concerned with its legality: is it within the limits of the powers granted? On an appeal the question is 'right or wrong?' On review the question is 'lawful or unlawful?'*¹²

Legal Objections

When this application was taken up for argument, the learned Counsel for the 4th Respondent raised the legal objection that the Petitioner had willfully misrepresented and suppressed material facts in relation to the Petitioner's letter dated 24.07.2009 addressed to the 4th Respondent (P10 in CA Writ 504/11).

The requirement to make a full and fair disclosure of all material facts when seeking prerogative relief is well established in our law, and, the duty cast upon a petitioner seeking such relief has been articulated by the Supreme Court in **Jayasinghe v. The National Institute of Fisheries and Nautical Engineering and others**¹³ in the following terms (per Yapa J);

*"When a litigant makes an application to this Court seeking relief, he enters into a contractual obligation with the Court. This contractual relationship requires the petitioner to disclose all material facts correctly and frankly. This is a duty cast on any litigant seeking relief from Court. In the case of **Blanca Diamonds (Pvt) Limited v. Wilfred Van Els and Two Others**,¹⁴ the Court highlighted this contractual obligation which a party enters into with the Court, requiring the*

¹¹ C.F. Forsyth & I.J. Ghosh, *Wade & Forsyth's Administrative Law* (12th edn, Oxford University Press, 2023) 15.

¹² The above position has been consistently maintained by this Court in exercising its writ jurisdiction including in **Nicholas v. Macan Markar Limited** [1985] 1 Sri L.R. 130 and **Alahakoon Mudiyansele Jayanthi Anulawathie v. Ananda Senaratne Bandara Jayasundara**, CA (Writ) Application No. 152/2021, decided on 21.10.2022

¹³ [2002] 1 Sri L.R. 27

¹⁴ [1997] 1 Sri LR 360.

*need to disclose uberrima fides and disclose all material facts fully and frankly to Court. Any party who misleads Court, misrepresents facts to Court or utters falsehood in Court will not be entitled to obtain redress from Court. It is a well-established proposition of law, since Courts expect a party seeking relief to be frank and open with the Court. This principle has been applied even in an application that has been made to challenge a decision made without jurisdiction. Further, Court will not go into the merits of the case in such situations. Vide **Rex v. Kensington Income Tax Commissioners; Princess Edmond De Polignac**.¹⁵ This principle of uberrima fides has been applied not only in writ cases where discretionary relief is sought from Court, but even in Admiralty cases involving the grant of injunctions.”*

As referred to in the preceding section of this judgment, the said letter dated 24.07.2009 addressed by the Petitioner to the 4th Respondent appears cast doubt on the position taken up by the Petitioner in the letters marked (P2), (P5) and (P7) and whether there was a genuine or *bona fide* intention on the part of the Petitioner to purchase the paddy land at the price fixed by the Agrarian Development Council. Considering its impact upon the credibility of the Petitioner’s case, the contents of the said letter would constitute a material fact for the adjudication of this case. Since the Petitioner was the author of the said letter, it would not have been difficult for him to specifically plead and produce a copy of same in the petition filed in the instant application.

The learned Counsel for the 4th Respondent submitted that, although the said letter had been filed without any identification as part of the case record in case record of CA (Writ) Application No. 504/2011 (P9), the Petitioner had failed and neglected to specifically refer to the aforementioned letter in the petition filed in these proceedings or to attach same, considering the significance of its contents. The learned Counsel for the Petitioner was unable to offer any explanation on such matter.

In **Alphonso Appuhamy v. Hettiarachchi**,¹⁶ it has been held by this Court that, if a material fact contained in a document is not expressly referred to in the petition and affidavit, the petitioner is guilty of suppression of that material fact, even if that document itself is filed along with the petition and affidavit and the fact that the document is being so filed is mentioned in the petition and affidavit.¹⁷ In the instant case.

The facts of the above are substantially similar to the instant case, even though the fact that the document in issue is being filed has not been specifically mentioned in the petition in the instant case. Hence, I intend to be guided by the decision in **Alphonso Appuhamy’s Case (supra)** and hold that the Petitioner has not made a full and fair disclosure of all material facts and is guilty of suppression and misrepresentation of same.

¹⁵ [1917] 1 KB 486

¹⁶ (1973) 77 NLR 131

¹⁷ As cited in Sunil F.A. Coorey, *Principles of Administrative Law in Sri Lanka* (4th ed, vol 2, 2020) 1164

Conclusion and Orders of Court

For the reasons set out above, I hold that the Petitioner has failed to establish his entitlement to the reliefs prayed for the petition. The fact that the Petitioner has suppressed and misrepresented material facts, as determined by me, too, militate against the grant of prerogative relief. Therefore, I proceed to dismiss the Petitioner's application. The parties will bear their own costs.

Application dismissed.

Judge of the Court of Appeal

Mayadunne Corea J.

I agree.

Judge of the Court of Appeal